

HOUSE BILL 1877

By Martin G

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 5; Title 6; Title 7; Title 8; Title 40; Title 47;
Title 50 and Title 56, relative to requiring microchip
implantation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 1, Part 4, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Microchip" means a device subcutaneously implanted in an
individual that passively or actively transmits personal information to another
device using radio frequency technology;

(2) "State government entity" means a branch, department, agency,
commission, or instrumentality of state government, or an official or other
individual acting on behalf of a branch, department, agency, commission, or
instrumentality of state government; and

(3) "Voluntarily":

(A) Means performed consciously as a result of effort or
determination and without an incentive, inducement, or coercion; and

(B) Includes an individual, as a result of a free will decision by the
individual, getting a microchip or other device implanted for the diagnosis,
monitoring, treatment, or prevention of a health condition that only
transmits information necessary to carry out the diagnosis, monitoring,
treatment, or prevention of a health condition.

(b) A state government entity shall not require an individual to be implanted with a microchip or other permanent identification marker as a condition to receive benefits or services, or participate in assistance programs, offered or otherwise provided by the state government entity.

(c) This section does not prohibit an individual from voluntarily being implanted with a microchip or other permanent identification marker.

SECTION 2. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "County government entity" means a branch, department, agency, commission, or instrumentality of county government, or an official or other individual acting on behalf of a branch, department, agency, commission, or instrumentality of county government;

(2) "Microchip" means a device subcutaneously implanted in an individual that passively or actively transmits personal information to another device using radio frequency technology; and

(3) "Voluntarily":

(A) Means performed consciously as a result of effort or determination and without an incentive, inducement, or coercion; and

(B) Includes an individual, as a result of a free will decision by the individual, getting a microchip or other device implanted for the diagnosis, monitoring, treatment, or prevention of a health condition that only transmits information necessary to carry out the diagnosis, monitoring, treatment, or prevention of a health condition.

(b) A county government entity shall not require an individual to be implanted with a microchip or other permanent identification marker as a condition to receive benefits or services, or participate in assistance programs, offered or otherwise provided by the county government entity.

(c) This section does not prohibit an individual from voluntarily being implanted with a microchip or other permanent identification marker.

SECTION 3. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Microchip" means a device subcutaneously implanted in an individual that passively or actively transmits personal information to another device using radio frequency technology;

(2) "Municipal government entity" means a branch, department, agency, commission, or instrumentality of municipal government, or an official or other individual acting on behalf of a branch, department, agency, commission, or instrumentality of municipal government; and

(3) "Voluntarily":

(A) Means performed consciously as a result of effort or determination and without an incentive, inducement, or coercion; and

(B) Includes an individual, as a result of a free will decision by the individual, getting a microchip or other device implanted for the diagnosis, monitoring, treatment, or prevention of a health condition that only transmits information necessary to carry out the diagnosis, monitoring, treatment, or prevention of a health condition.

(b) A municipal government entity shall not require an individual to be implanted with a microchip or other permanent identification marker as a condition to receive benefits or services, or participate in assistance programs, offered or otherwise provided by the municipal government entity.

(c) This section does not prohibit an individual from voluntarily being implanted with a microchip or other permanent identification marker.

SECTION 4. Tennessee Code Annotated, Title 7, Chapter 51, is amended by adding the following as a new part:

7-51-2801. Part definitions.

As used in this part:

(1) "Metropolitan government entity" means a branch, department, agency, commission, or instrumentality of metropolitan government, or an official or other individual acting on behalf of a branch, department, agency, commission, or instrumentality of metropolitan government;

(2) "Microchip" means a device subcutaneously implanted in an individual that passively or actively transmits personal information to another device using radio frequency technology; and

(3) "Voluntarily":

(A) Means performed consciously as a result of effort or determination and without an incentive, inducement, or coercion; and

(B) Includes an individual, as a result of a free will decision by the individual, getting a microchip or other device implanted for the diagnosis, monitoring, treatment, or prevention of a health condition that only transmits information necessary to carry out the diagnosis, monitoring, treatment, or prevention of a health condition.

7-51-2802. Requirement of microchip implantation prohibited.

A metropolitan government entity shall not require an individual to be implanted with a microchip or other permanent identification marker as a condition to receive benefits or services, or participate in assistance programs, offered or otherwise provided by the metropolitan government entity.

7-51-2803. Voluntary microchip implantation not prohibited.

This part does not prohibit an individual from voluntarily being implanted with a microchip or other permanent identification marker.

SECTION 5. Tennessee Code Annotated, Title 50, Chapter 1, Part 2, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Department" means the department of labor and workforce development;

(2) "Employer" means a person or entity that employs one (1) or more employees and includes the state and its political subdivisions;

(3) "Microchip" means a device subcutaneously implanted in an individual that passively or actively transmits personal information to another device using radio frequency technology; and

(4) "Voluntarily":

(A) Means performed consciously as a result of effort or determination and without an incentive, inducement, or coercion; and

(B) Includes an individual, as a result of a free will decision by the individual, getting a microchip or other device implanted for the diagnosis, monitoring, treatment, or prevention of a health condition that only

transmits information necessary to carry out the diagnosis, monitoring, treatment, or prevention of a health condition.

(b) An employer shall not require an individual to be implanted with a microchip or other permanent identification marker as a condition of employment.

(c)

(1) An individual aggrieved by an alleged violation of subsection (b) may submit a complaint to the department. The department shall investigate complaints submitted, and shall provide the employer an opportunity to be heard, in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5. If the department finds that the employer violated subsection (b) after the investigation and hearing, then the department shall assess:

(A) For a first violation, a civil penalty not to exceed three thousand dollars (\$3,000); or

(B) For a subsequent violation within six (6) months of another violation, a civil penalty not to exceed ten thousand dollars (\$10,000).

(2) In addition to the remedy described under subdivision (c)(1), an individual aggrieved by a violation of subsection (b) may bring a private cause of action in a court of competent jurisdiction. The court shall award reasonable attorneys' fees to the prevailing party. If the court finds that an employer violated subsection (b), then the court shall also award to the plaintiff:

(A) Actual damages; and

(B) Punitive damages.

(d) This section does not prohibit an individual from voluntarily being implanted with a microchip or other permanent identification marker.

SECTION 6. Tennessee Code Annotated, Title 47, Chapter 18, is amended by adding the following as a new part:

47-18-3501. Part definitions.

As used in this part:

(1) "Microchip" means a device subcutaneously implanted in an individual that passively or actively transmits personal information to another device using radio frequency technology; and

(2) "Voluntarily":

(A) Means performed consciously as a result of effort or determination and without an incentive, inducement, or coercion; and

(B) Includes an individual, as a result of a free will decision by the individual, getting a microchip or other device implanted for the diagnosis, monitoring, treatment, or prevention of a health condition that only transmits information necessary to carry out the diagnosis, monitoring, treatment, or prevention of a health condition.

47-18-3502. Prohibited conduct.

It is an offense for an individual, including an individual licensed to sell or provide insurance pursuant to title 56, chapter 6, or an individual licensed as a professional bondsman pursuant to title 40, chapter 11, part 3, to require another individual to be implanted with a microchip or other permanent identification marker.

47-18-3503. Penalties.

A violation of § 47-18-3502 is a Class E felony, punishable only by a fine of not more than five thousand dollars (\$5,000) per violation.

47-18-3504. Voluntary microchip implantation not prohibited.

This part does not prohibit an individual from voluntarily being implanted with a microchip or other permanent identification marker.

SECTION 7. This act takes effect July 1, 2026, the public welfare requiring it, and applies to agreements entered into or amended, or conduct occurring, on or after that date.